



**TAL
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EU REGULATORY FRAMEWORK FOR e- GOVERNANCE

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Tallinn University of Technology

05.09.2024

OUTLINE

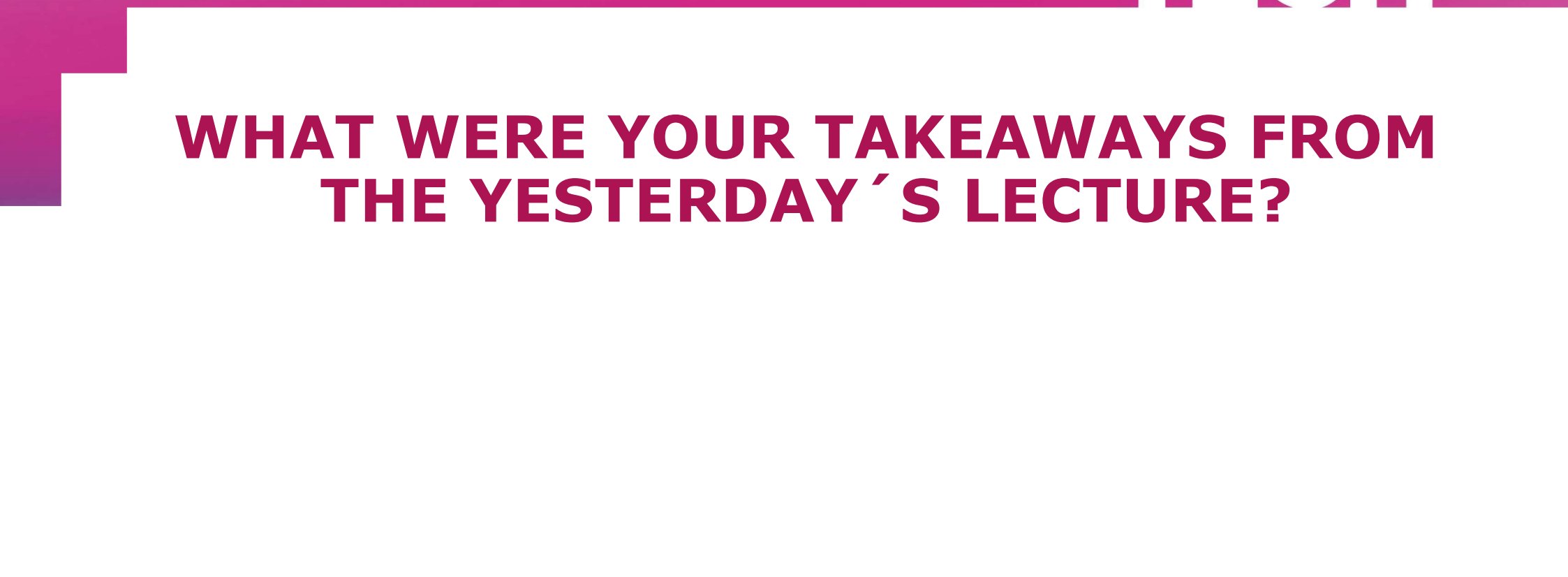
- General news and finishing the yesterday's slides.
- Introduction to the EU law
- EU digital strategy and digital policy goals
- European Interoperability Framework
- Main digital initiatives in the EU
- Discussion and groupwork
- Presentation guidelines and formation of presentation groups

GENERAL NEWS

- **In the Moodle you will find:**
 - 04.09.2025 lecture recording link;
 - 04.09.2025 lecture slides in pdf format;
 - Additional reading material (including UN e-Government Survey 2024)

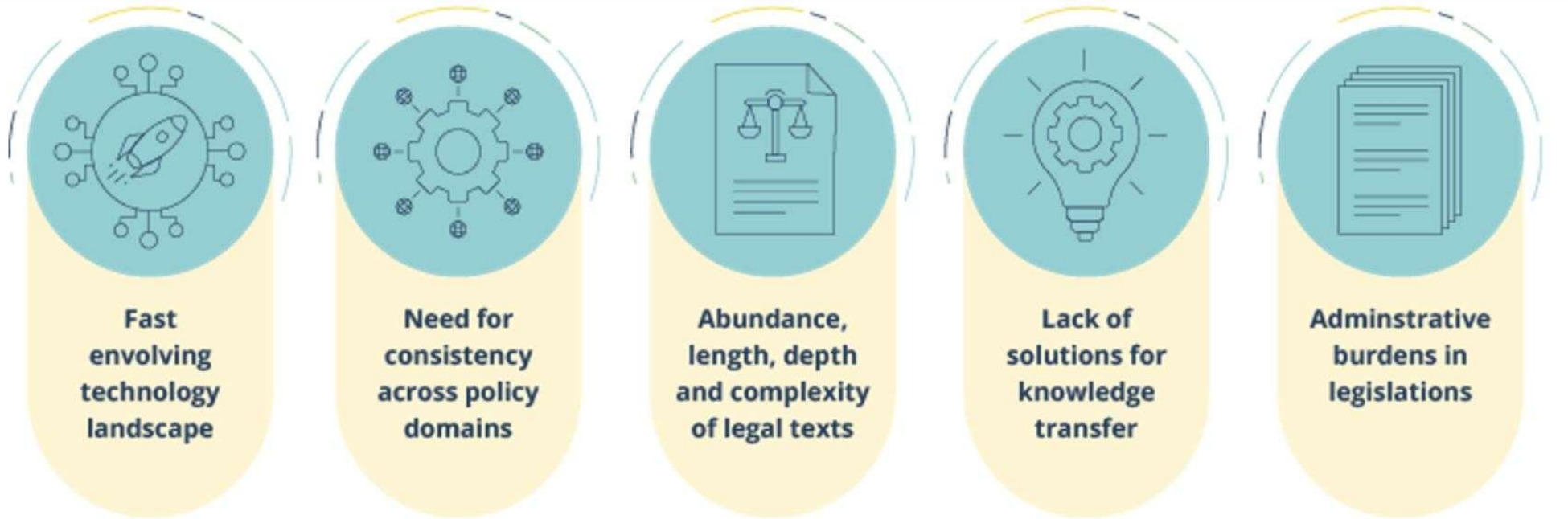


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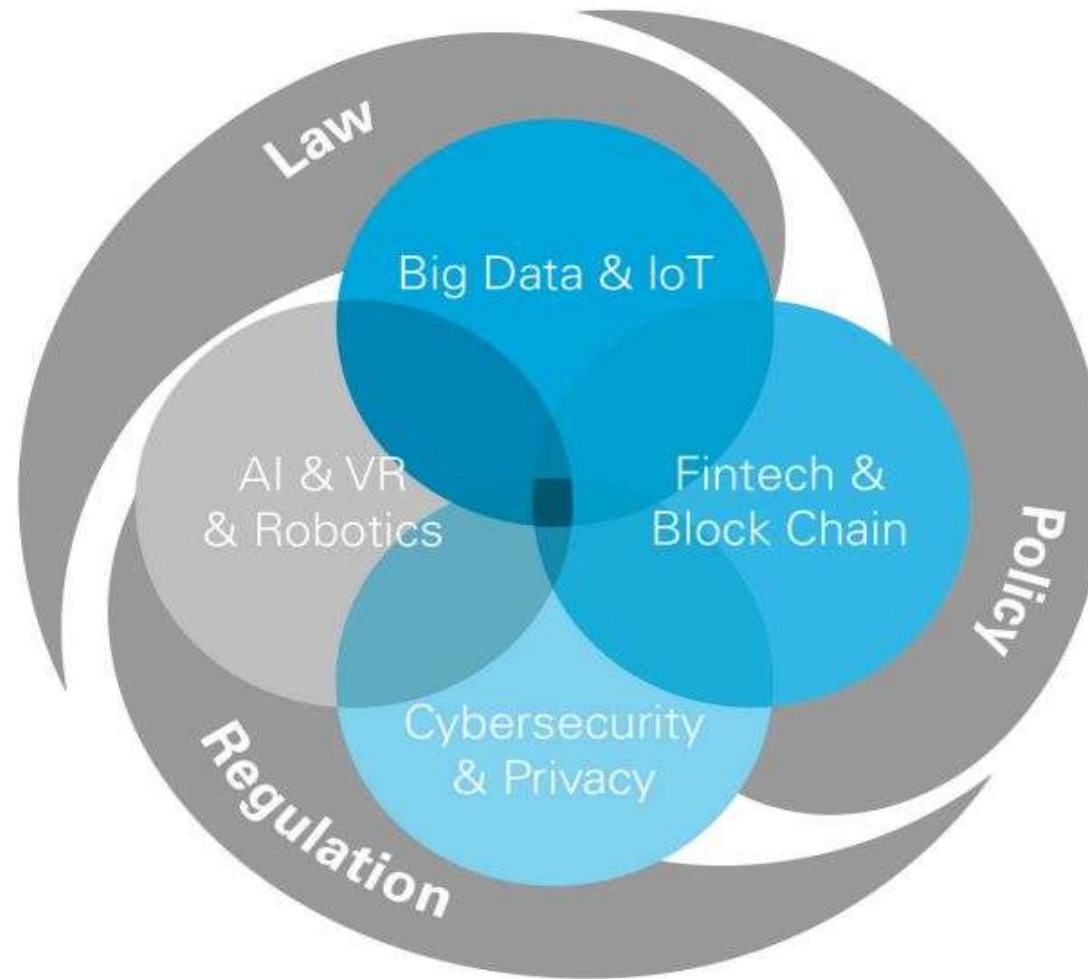


**WHAT WERE YOUR TAKEAWAYS FROM
THE YESTERDAY'S LECTURE?**

CHALLENGES IN TECHNOLOGY & LAW



FUTURE TECHNOLOGY TRENDS



DIRECTIONS IN LEGISLATION

- Legislation needs to become more:
 - proactive
 - dynamic
 - responsive



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How to achieve that?

PRINCIPLES OF FUTURE LAW-MAKING

- Data driven regulations
- A principle-based approach
- Implementing minimum regulatory sandboxes

Rules-based approach	Principles-based approach
(1) Establish ethical rules that members must follow.	(1) Establish fundamental ethical principles that members must follow.
(2) Ensure members are aware of the rules.	(2) Ensure members are aware of the principles.
(3) Ensure members comply with those rules.	(3) Require members to identify and address threats to compliance with the principles and make an appropriate response to mitigate each threat.

WHAT IS A REGULATORY SANDBOX?

- No single definition, but it can be seen as a **regulatory approach which is generally described as a controlled testing environment for new technologies**, under the supervision and in close contact with regulators.
- In essence, a regulatory sandbox is a direct line of communication between companies and the regulator, and the commitment to dialogue from both parties.
- **Examples:**
 - The first case of an official regulatory sandbox was an initiative from British Financial Conduct Authority (FCA), which is still active. It was launched in 2016, following a 2015 study on the feasibility of establishing a first-of-its-kind regulatory sandbox for financial services.
 - Recently, the EU has proposed the creation of a European AI Sandbox, by means of the Artificial Intelligence Act (AI Act).

REGULATORY SANDBOX TOOLKIT

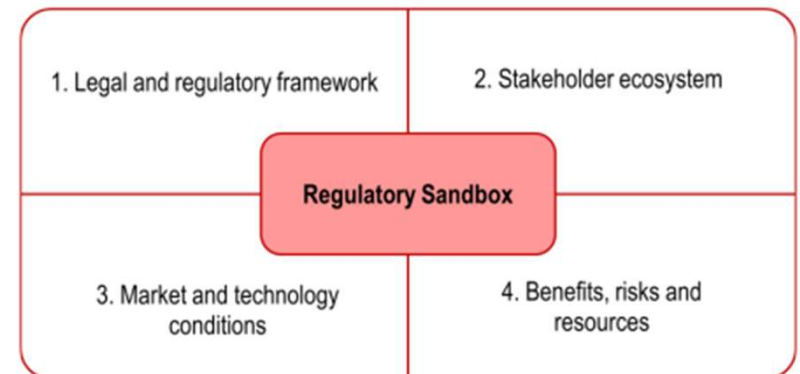
- Regulatory Sandbox Toolkit - A Comprehensive Guide for Regulators to Establish and Manage Regulatory Sandboxes Effectively by OECD

- Provides information:
 - How to plan and design the sandbox;
 - Executing the sandbox;
 - Closing and learning from the sandbox.

- Available:

https://www.oecd.org/en/publications/regulatory-sandbox-toolkit_de36fa62-en.html

Figure A.1. Issues to consider before launching the RS process



Source: Adapted from (Jenik and Lauer, 2017^[10]).

CHAT GPT SAYS...

- **Create a Technology-Friendly Regulatory Environment:** Develop legislation that fosters a welcoming and supportive regulatory environment for emerging technologies. This includes minimizing bureaucratic hurdles and simplifying compliance procedures.
- **Establish Technology Impact Assessment:** Before implementing new regulations or amending existing ones, conduct technology impact assessments to evaluate how proposed legislation may affect the adoption and use of innovative technologies. Consider economic, social, and environmental impacts.
- **Collaborative Legislative Process:** Involve stakeholders from the technology industry, academia, advocacy groups, and other relevant sectors in the legislative process. Seek their input and expertise to craft well-informed policies.
- **Regulatory Sandboxes:** Create regulatory sandboxes or pilot programs that allow companies to test new technologies in a controlled environment with relaxed regulations. This approach encourages experimentation and innovation while maintaining safeguards.
- **Incentives and Subsidies:** Offer financial incentives, tax breaks, grants, or subsidies to businesses and individuals adopting innovative technologies. These incentives can help offset initial implementation costs and drive adoption.
- **Funding for Research and Development:** Allocate government funding for research and development in emerging technology areas. This investment can spur innovation and create a pipeline of new technologies ready for implementation.

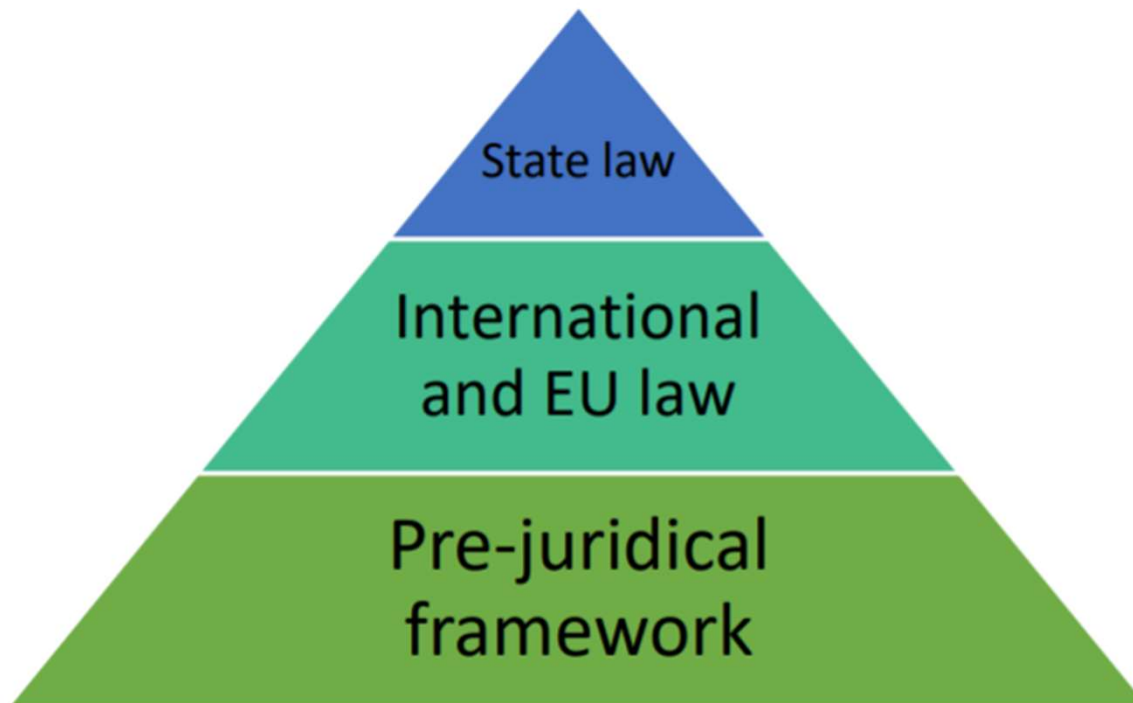
CHAT GPT SAYS...

- **Education and Workforce Development:** Invest in education and training programs to develop a skilled workforce capable of working with new technologies. Ensuring that there are enough qualified professionals can facilitate technology adoption.
- **Digital Infrastructure:** Develop and maintain robust digital infrastructure, including high-speed internet access, to support the implementation of new technologies. Infrastructure is a critical enabler of innovation.
- **Open Data Initiatives:** Promote open data initiatives that make government data accessible to the public and businesses. This can spur the development of new applications and services built on top of this data.
- **Interoperability Standards:** Encourage the development of industry-wide interoperability standards, which make it easier for different technologies to work together. This reduces friction in technology adoption.
- **Cybersecurity and Data Privacy Regulations:** Ensure that cybersecurity and data privacy regulations strike a balance between protecting individuals' rights and fostering innovation. Clarity in these areas can build trust in technology solutions.
- **Fast-Track Approval Processes:** Implement expedited approval processes for innovative technologies in sectors such as healthcare, energy, and transportation. This can speed up the deployment of life-saving or transformative solutions.

CHAT GPT SAYS...

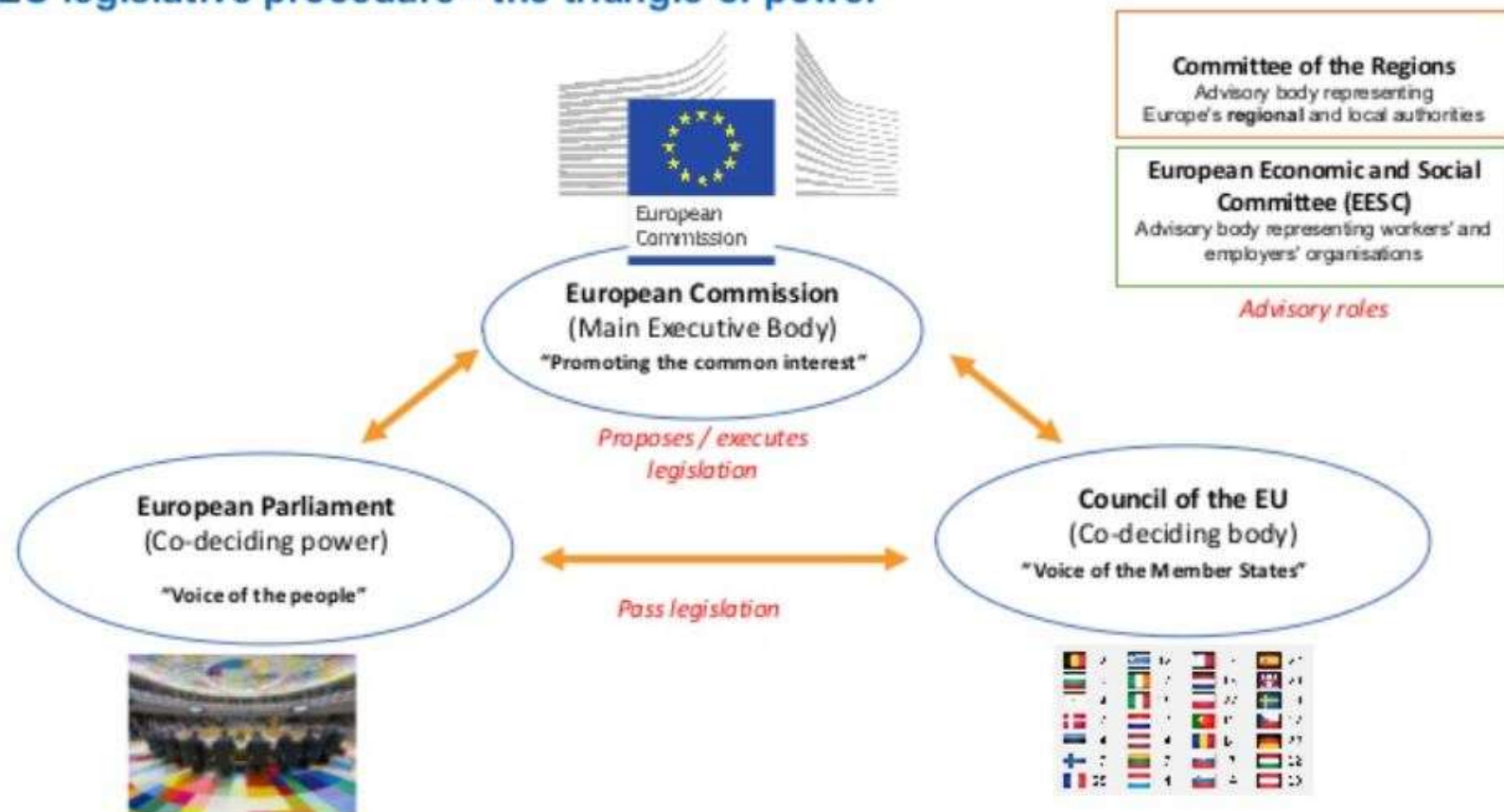
- **Responsive Legislation:** Establish mechanisms for reviewing and updating regulations to keep pace with technological advancements. Legislation should be agile enough to accommodate rapidly changing technology landscapes.
- **Public Awareness Campaigns:** Educate the public about the benefits of new technologies and the positive impact they can have on society. A well-informed public is more likely to support legislative efforts promoting innovation.
- **International Cooperation:** Collaborate with international partners to harmonize regulations and standards, especially in industries with global implications. This reduces compliance burdens for businesses operating globally.
- **Government Procurement Policies:** Implement government procurement policies that prioritize the purchase of innovative technologies and products. This can create a market for new technologies and stimulate demand.
- **Long-Term Technology Roadmaps:** Develop long-term technology roadmaps that outline the government's vision for technology adoption and innovation. This provides a strategic framework for legislative efforts.
- **Monitoring and Evaluation:** Establish mechanisms for monitoring and evaluating the impact of technology-related legislation. Regular assessments can help refine policies and ensure they achieve their intended goals.

LEGAL AND REGULATORY FRAMEWORK



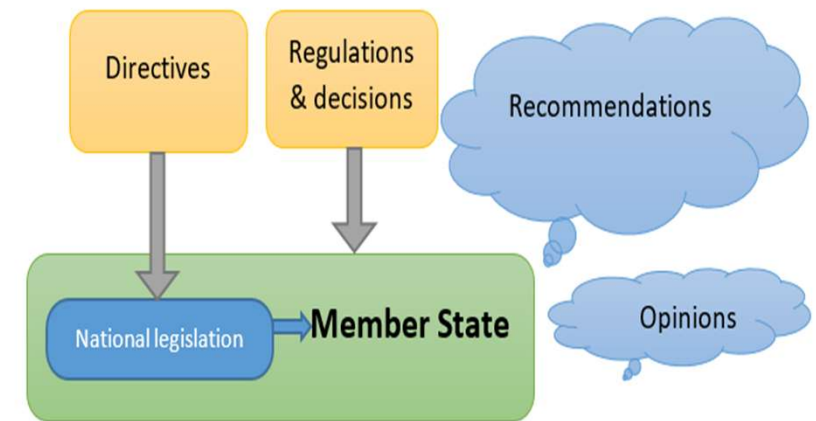
EU LEGISLATION PROCESS

EU legislative procedure - the triangle of power



TYPES OF EU LEGAL ACTS

- **EU treaties** - are negotiated and agreed by all the EU countries and then ratified by their parliaments, sometimes following a referendum.
- **Regulations** - apply automatically and uniformly to all EU countries as soon as they enter into force, without needing to be transposed into national law.
- **Directives** - require EU countries to achieve a certain result but leave them free to choose how to do so.
- **Decisions** - to regulate a specific question, entirely binding.
- **Recommendations** - non-binding
- **Delegated acts** - are legally binding acts that enable the Commission to supplement or amend non-essential parts of EU legislative acts.
- **Implementing acts** - to set conditions that ensure that EU laws are applied uniformly.



EU TREATIES

- Treaty of European Union
- Treaty on the Functioning of the European Union
- Treaty establishing the European Atomic Energy Community
- Charter of Fundamental Rights of the European Union
(protection of personal data, access to services of general economic interest, consumer protection, right to good administration, right of access to documents)

Available:

<https://eur-lex.europa.eu/collection/eu-law/treaties/treaties-force.html>

EU DECISIONS

Document 32022D2481

Decision (EU) 2022/2481 of the European Parliament and of the Council of 14 December 2022 establishing the Digital Decade Policy Programme 2030 (Text with EEA relevance)

PE/50/2022/REV/1

OJ L 323, 19.12.2022, p. 4–26 (BG, ES, CS, DA, DE, ET, EL, EN, FR, GA, HR, IT, LV, LT, HU, MT, NL, PL, PT, RO, SK, SL, FI, SV)

● In force

ELI: <http://data.europa.eu/eli/dec/2022/2481/oj>

Document 32021D0820

Decision (EU) 2021/820 of the European Parliament and of the Council of 20 May 2021 on the Strategic Innovation Agenda of the European Institute of Innovation and Technology (EIT) 2021-2027: Boosting the Innovation Talent and Capacity of Europe and repealing Decision No 1312/2013/EU (Text with EEA relevance)

PE/9/2021/REV/1

OJ L 189, 28.5.2021, p. 91–118 (BG, ES, CS, DA, DE, ET, EL, EN, FR, GA, HR, IT, LV, LT, HU, MT, NL, PL, PT, RO, SK, SL, FI, SV)

● In force

ELI: <http://data.europa.eu/eli/dec/2021/820/oj>

EU RECOMMENDATIONS

The European Commission issues recommendations:

- the rights of suspects in criminal cases;
- policy guidance on individual EU countries' public finances;
- promoting zero-energy buildings.

Some other EU institutions also issue recommendations:

- European Parliament;
- The Council;
- European Central Bank.

EU DELEGATED ACTS

- Delegated acts are non-legislative acts adopted by the European Commission that serve to amend or supplement the non-essential elements of the legislation.

The Commission's powers to adopt delegated acts are subject to strict conditions:

- the basic act must define the objectives, content, scope and duration of the delegation of power;
- the actual delegated act — adopted on the basis of this delegation — cannot change the essential elements of the basic act;
- delegated acts can only be of general application (i.e. cannot address individual situations).

Wednesday, 27 March 2019 - Strasbourg

Asylum, Migration and Integration Fund

P8_TA(2019)0311

B8-0214/201

► European Parliament resolution of 27 March 2019 on the Commission delegated regulation of 14 December 2018 amending Annex II to Regulation (EU) No 516/2014 of the European Parliament and of the Council establishing the Asylum, Migration and Integration Fund (C(2018)08466 – 2018/2996(DEA))

The European Parliament.

EU IMPLEMENTING ACTS

Document 32015R1502

Commission Implementing Regulation (EU) 2015/1502 of 8 September 2015 on setting out minimum technical specifications and procedures for assurance levels for electronic identification means pursuant to Article 8(3) of Regulation (EU) No 910/2014 of the European Parliament and of the Council on electronic identification and trust services for electronic transactions in the internal market (Text with EEA relevance)

OJ L 235, 9.9.2015, p. 7–20 (BG, ES, CS, DA, DE, ET, EL, EN, FR, HR, IT, LV, LT, HU, MT, NL, PL, PT, RO, SK, SL, FI, SV)

● In force: This act has been changed. Current consolidated version: [11/07/2022](#)

ELI: http://data.europa.eu/eli/reg_impl/2015/1502/oj

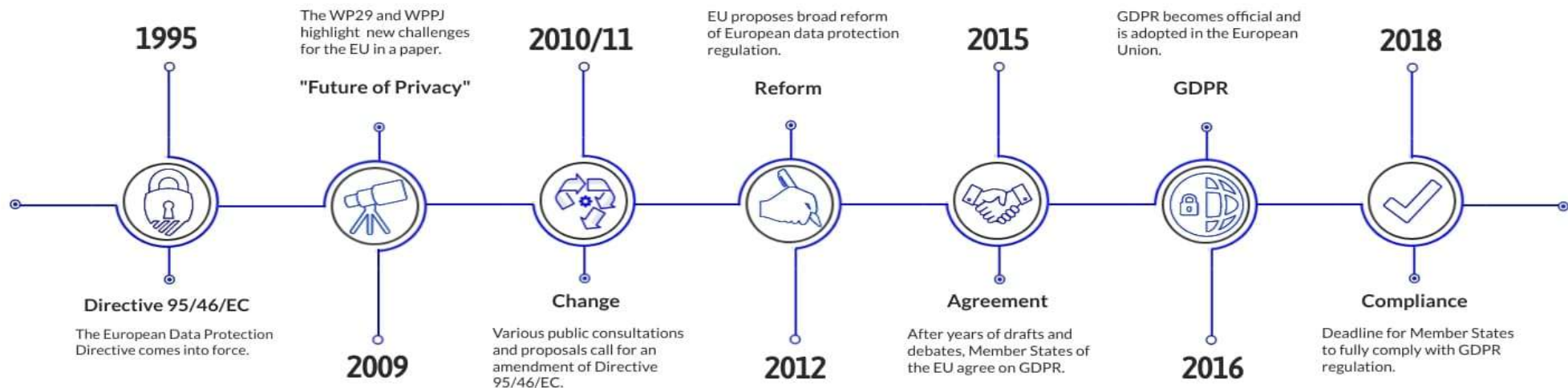
▼ Expanded list of Collections ▼

Commission Implementing Decision (EU) 2015/296 of 24 February 2015 establishing procedural arrangements for cooperation between Member States on electronic identification pursuant to Article 12(7) of Regulation (EU) No 910/2014

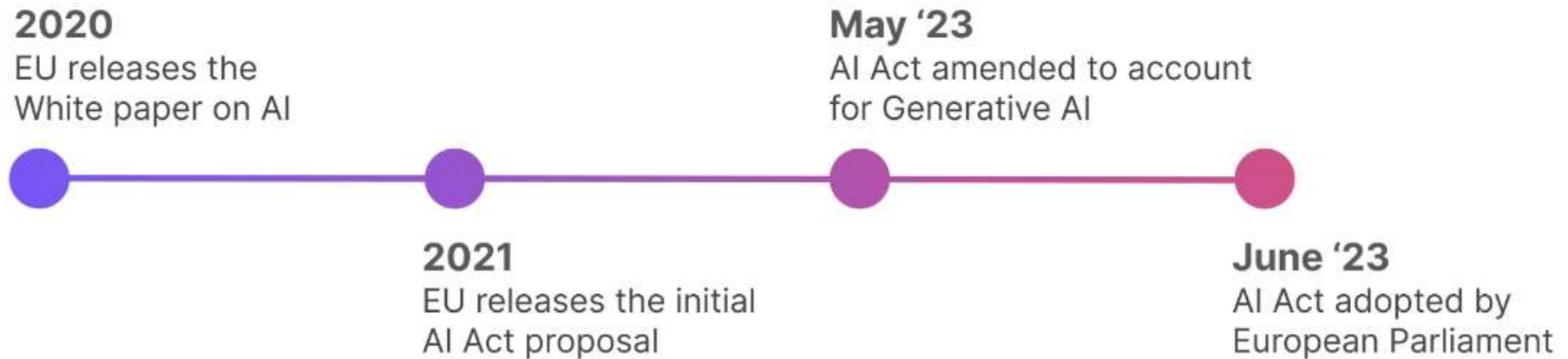
The [EU](#) member states are required to cooperate in order to ensure the interoperability and security of their electronic identification systems. This decision covers methods for information-sharing and establishes a cooperation network chaired by the European Commission and made up of representatives of the member states and the countries of the European Economic Area.

GDPR TIMELINE

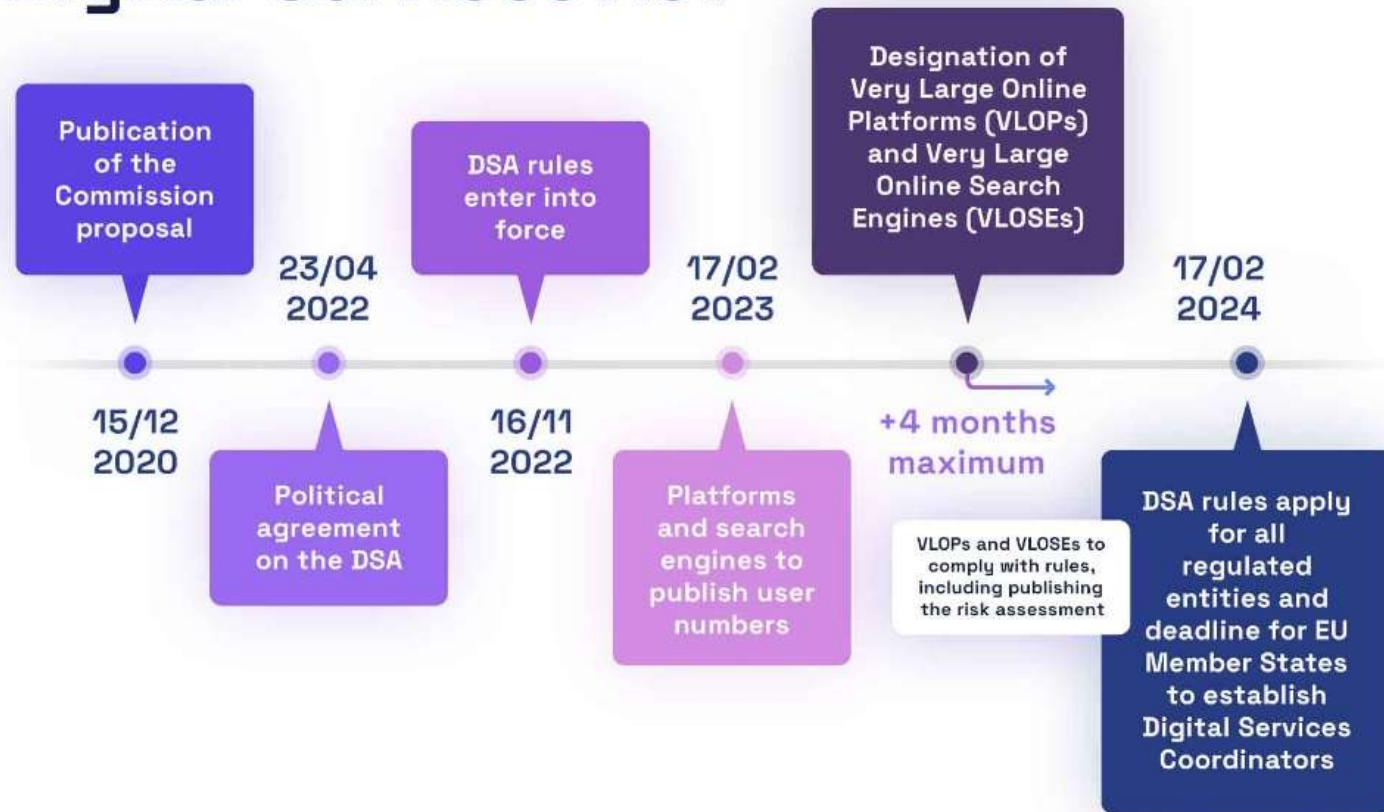
A Brief History of GDPR



AI ACT TIMELINE



Timeline for Digital Services Act





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A CASE-STUDY

TAX DECLARATION REGULATIONS IN EU



European
Union

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Access to European Union law

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2023 (2645)

2022 (2561)

2021 (2675)

2020 (2293)

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Create in My alerts (RSS feeds)

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☐ Regulation (EC) No 2516/2000 of the European Parliament and of the Council of 7 November 2000 modifying the common principles of the European system of national and regional accounts in the Community (ESA) 95 as concerns taxes and social contributions and amending Council Regulation (EC) No 2223/96
OJ L 290, 17/11/2000, p. 1-2 (ES, DA, DE, EL, EN, FR, IT, NL, PT, FI, SV)
This document has been published in a special edition(s) (CS, ET, LV, LT, HU, MT, PL, SK, SL, BG, RO, HR)

In force

CELEX number 32000R2516

Author: European Parliament, Council of the European Union

By collection

EU law and case-law (61816)

Legal acts (10102)

Consolidated texts (5168)

Treaties (227)

Lawmaking procedures (569)

International agreements (997)

Preparatory documents (22864)

Parliamentary questions (7733)

Case-law (13819)

EFTA documents (337)

National law and case-law (2868)

National transposition (327)

National case-law (2541)

JURE case-law (140)

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TALLINN UNIVERSITY OF TECHNOLOGY

LEGAL ENVIRONMENT STAKEHOLDERS IN THE FIELD OF TAX AND CUSTOMS



International stakeholders

- World Trade Organization (WTO) - agreements
- World Customs Organization (WCO) - conventions, agreements, declarations, recommendations, resolutions, standards (i.e cross-border e-commerce framework)
- Universal Postal Union (UPU) - standards (UPU Technical Standards, UPU EDI Messaging Standards)
- International Transport Organizations (FIATA, IATA, International Chamber of Shipping, IRU, UIC, SMDG)
- International Organization for Standardization (ISO) - ISO standards



EU stakeholders

- European Commission/ Taxation and Customs Union - Union Customs Code (UCC), EU legislation
- European Standardisation Organizations (CEN, CENELEC, ETSI) - CEN and ETSI standards
- European Logistics Association



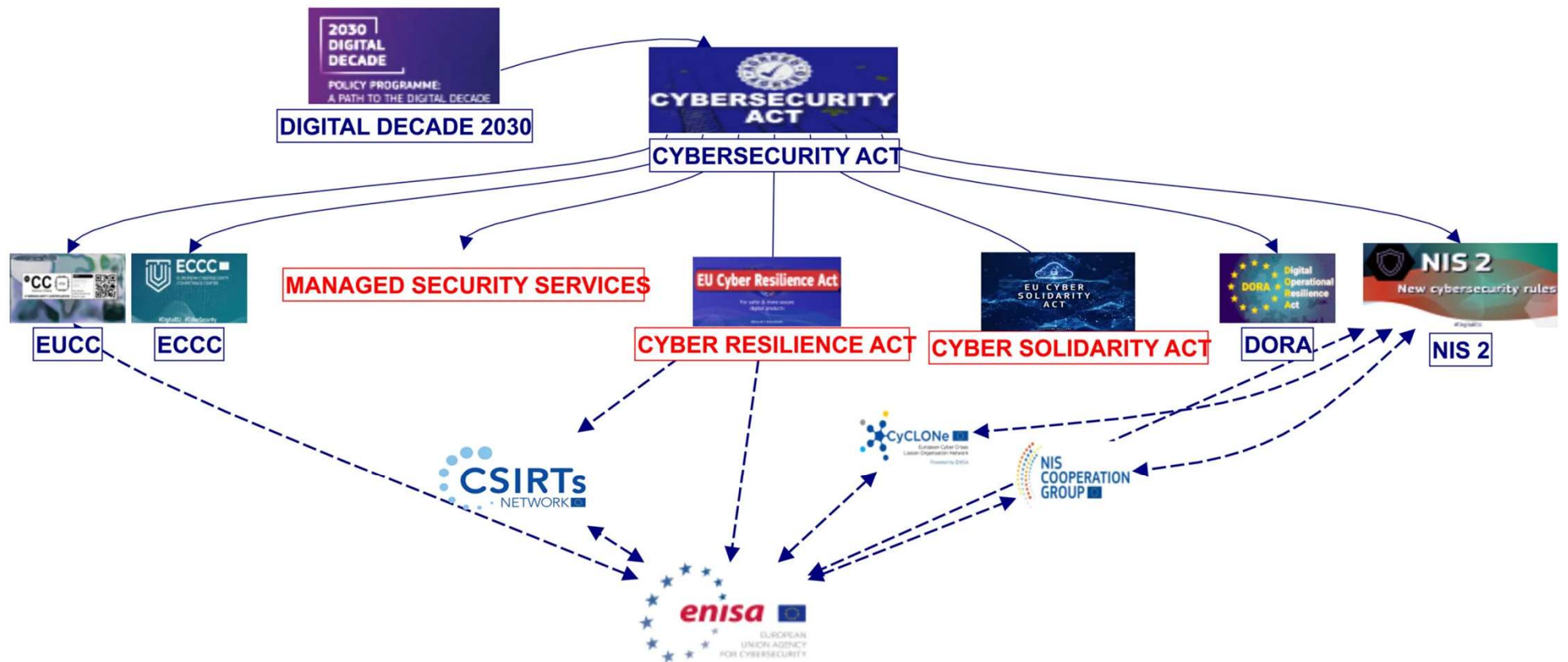
National stakeholders

- Estonian Tax and Customs Board - national legislation (Value-Added Tax Act, Customs Act etc.)
- Estonian Chamber of Commerce and Industry
- Estonian e-Commerce Association
- Enterprise Estonia
- Estonian Logistics & Freight Forwarding Association

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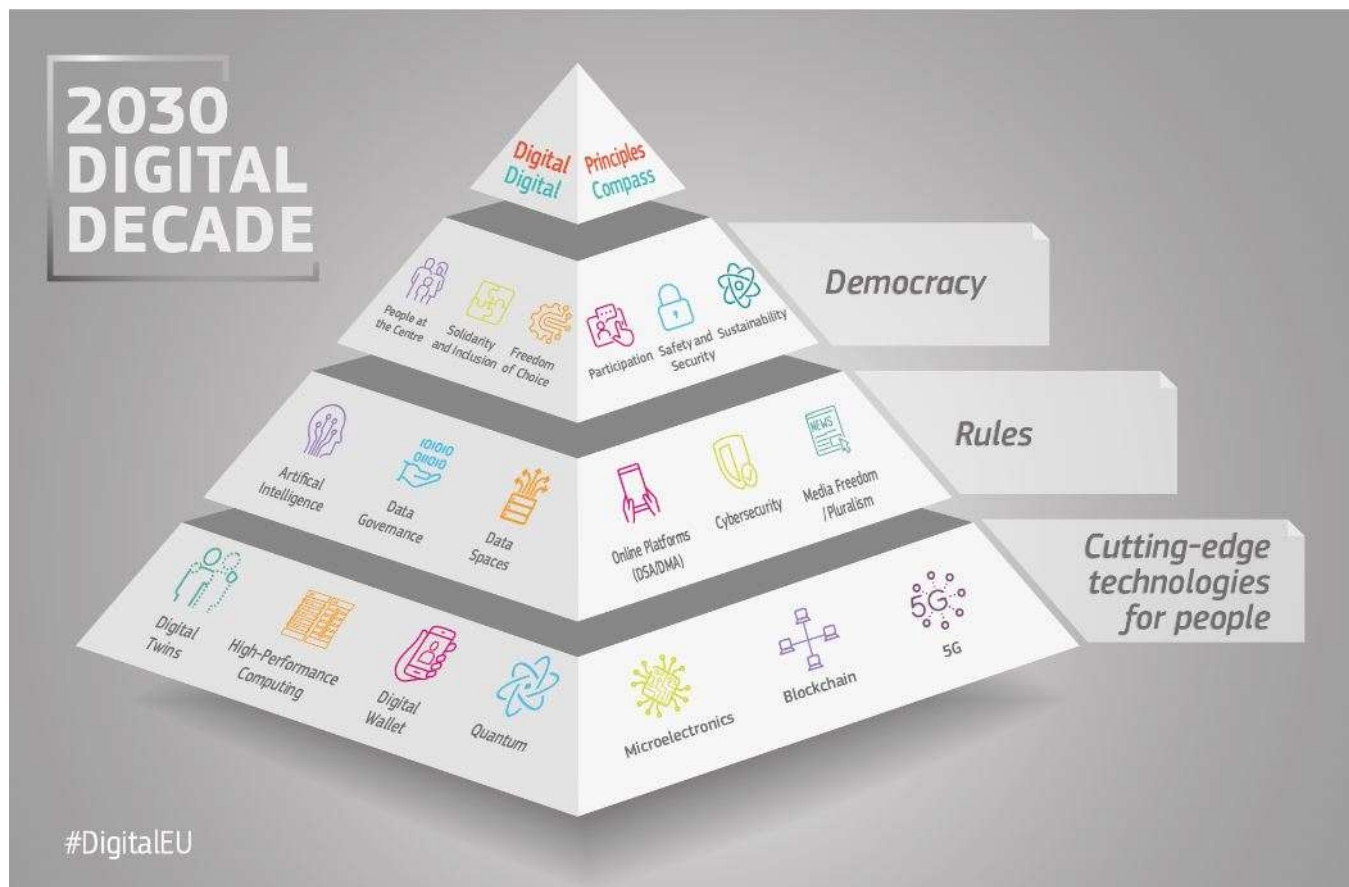
**WE HAVE DESERVED A BREAK TILL
18:10**

POLICY AND LAW-MAKING



EU DIGITAL STRATEGY

- In 2021, the European Commission proposed a path to the Digital Decade



DIGITAL POLICY PROGRAM

- 2030 Digital Compass – to digitally transform the EU economy and society.
- EU digital vision
- **Four main goals**
 - a digitally skilled population and highly skilled digital professionals;
 - secure and sustainable digital infrastructures;
 - digital transformation of businesses;
 - digitalisation of public services.

DIGITAL COMPASS

- Digital skills

ICT Specialists: 20 million + gender convergence

Basic Digital Skills: min 80% of the population

- Digital transformation of businesses

Tech up-take: 75% of EU companies using Cloud/AI/Big Data

Innovators: grow scale-ups & and finance to double EU Unicorns

Late adopters: more than 90% of SMEs reach at least a basic level of digital intensity

- Secure and sustainable digital infrastructures

Connectivity: Gigabit for everyone

Cutting edge Semiconductors: double EU share in global production

Data - Edge & Cloud: 10,000 climate-neutral, highly secure edge nodes

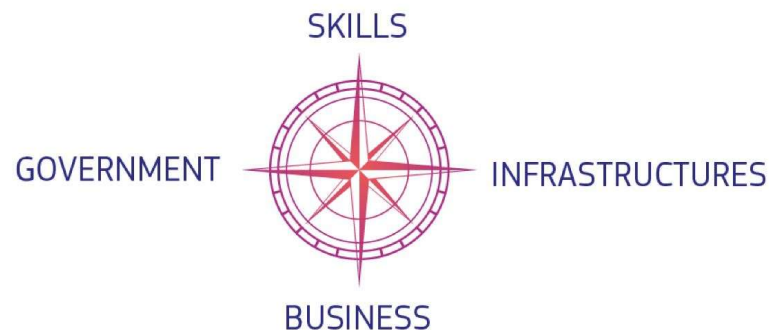
Computing: first computer with quantum acceleration

- Digitalization of public services

Key Public Services: 100% online

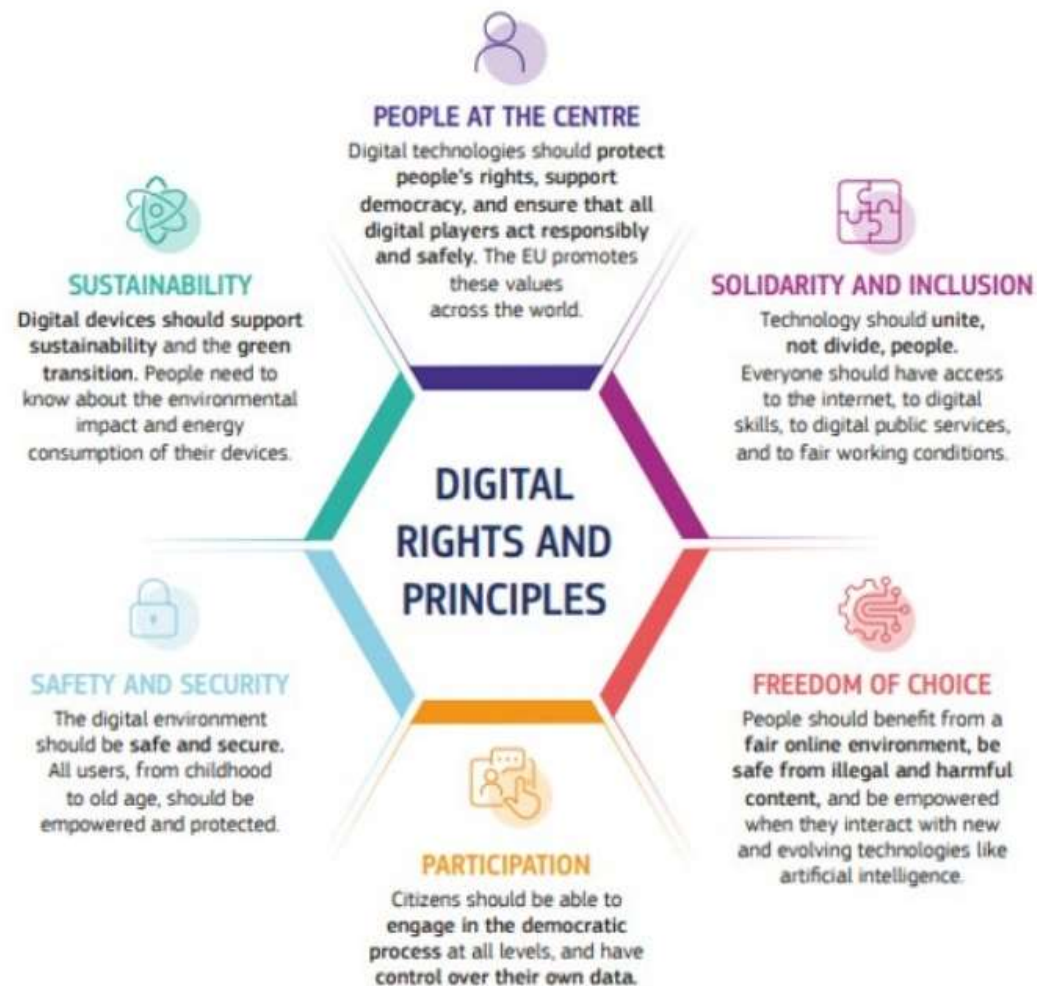
e-Health: 100% of citizens have access to medical records online

Digital Identity: 100% of citizens have access to digital ID



DECLARATION ON DIGITAL RIGHTS AND PRINCIPLES

- Presidents of the Commission, the European Parliament, and the Council signed it in November 2022.
- **Main principles:**
 - Putting people at the center of the digital transformation;
 - Supporting solidarity and inclusion through connectivity, digital education, training and skills, fair and just working conditions and access to digital public services;
 - Restating the importance of freedom of choice and a fair digital environment;
 - Fostering participation in the digital public space;
 - Increasing safety, security, and empowerment in the digital environment, in particular for young people;
 - Promoting sustainability.



RELATED INITIATIVES OF THE MEMBER STATES

- Tallinn Declaration on eGovernment
- Berlin Declaration on Digital Society and Value-based Digital Government
- Lisbon Declaration – Digital Democracy

TALLINN DECLARATION

- Signed by 32 countries (EU and EFTA)
- Activities for the years 2018-2022
- **Key principles agreed:**
 - digital-by-default, inclusiveness, accessibility
 - Once only
 - Trustworthiness and security
 - Openness and transparency
 - Interoperability by default
 - User-centricity principles for the design and delivery of digital public services



BERLIN DECLARATION

- Develops Tallinn Declaration further (especially user-centricity)
- Activities till 2024
- **7 key principles:**
 - **Validity and respect** of fundamental rights and democratic values in the digital sphere;
 - **Social participation and digital inclusion** to shape the digital world;
 - **Empowerment and digital literacy**, allowing all citizens to participate in the digital sphere;
 - **Trust and security in digital government interactions**, allowing everyone to navigate the digital world safely, authenticate, and be digitally recognized within the EU conveniently;
 - **Digital sovereignty and interoperability** are key in ensuring the ability of citizens and public administrations to make decisions and act self-determined in the digital world;
 - **Human-centered systems and innovative technologies in the public sector**, strengthening its pioneering role in the research on secure and trustworthy technology design;
 - **A resilient and sustainable digital society**, preserving our natural foundations of life in line with the Green Deal and using digital technologies to enhance the sustainability of our health systems.

LISBON DECLARATION

- Launched during the Portuguese presidency
- Declaration on digital rights and principles
- **Key areas:**
 - Upholding human rights, ethical values and democratic participation in the context of the digital era;
 - Promoting multi-stakeholder and wider international cooperation in the digital context;
 - Recognizing the importance of green and digital technologies.

INTERNATIONAL DIGITAL STRATEGY FOR EU

- Presented on 05.06.2025.
- **Objectives**
 - Boost the EU's tech competitiveness through economic and business cooperation;
 - Promote a high level of security for the EU and its partners;
 - Shape global digital governance and standards with a network of partners.
- **Priority areas: secure connectivity, emerging technologies** (Artificial Intelligence, 5G/6G, semiconductors, quantum technologies), **cybersecurity, digital public infrastructure, and online platforms** (including the protection of children online, freedom of speech and respect of privacy).
- Link: <https://digital-strategy.ec.europa.eu/en/library/joint-communication-international-digital-strategy-eu>



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Why is EU putting so much effort into digitalization and e-governance?

EU 4 FREEDOMS

Free movement of:

- Goods
- Capital
- Services
- People

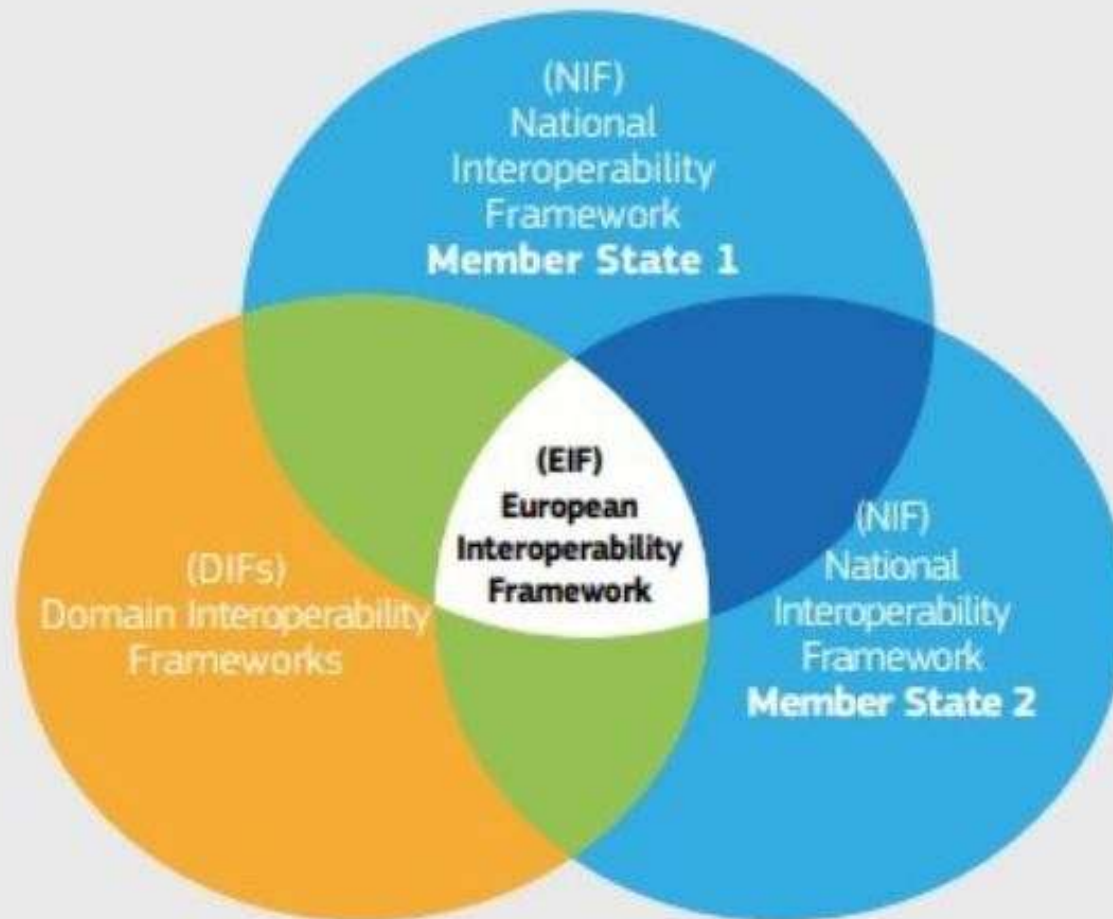


EUROPEAN INTEROPERABILITY FRAMEWORK (EIF)

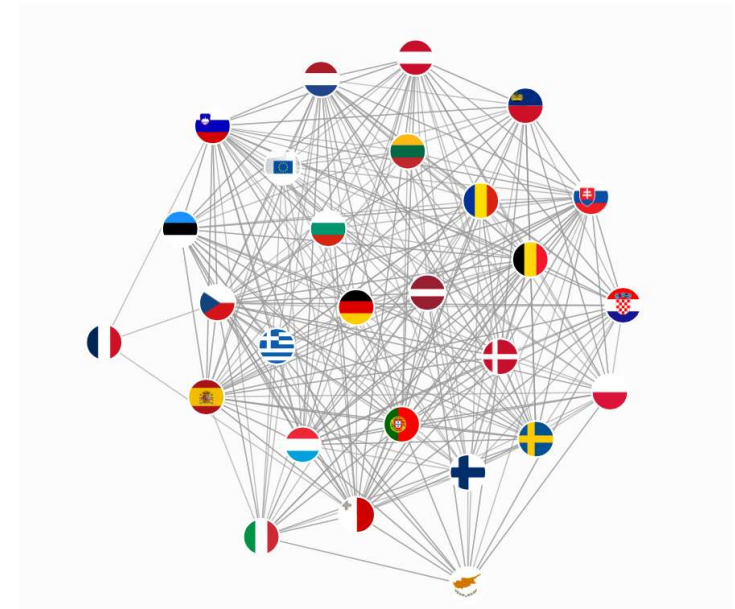
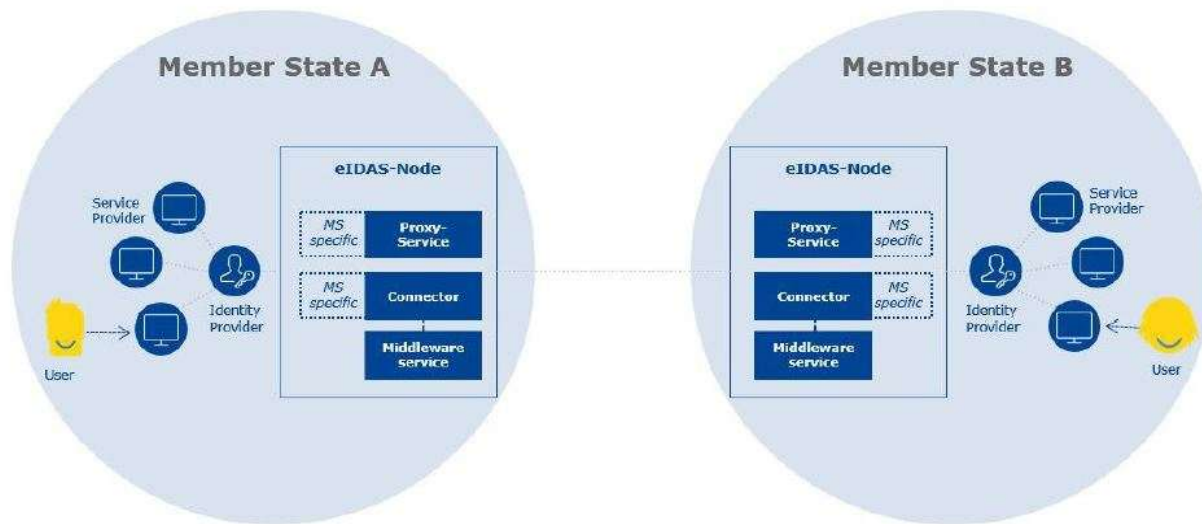
- Adopted in March 2017
- The framework gives specific guidance on how to set up interoperable digital public services.
- 47 concrete recommendations



RELATIONSHIPS IN EIF

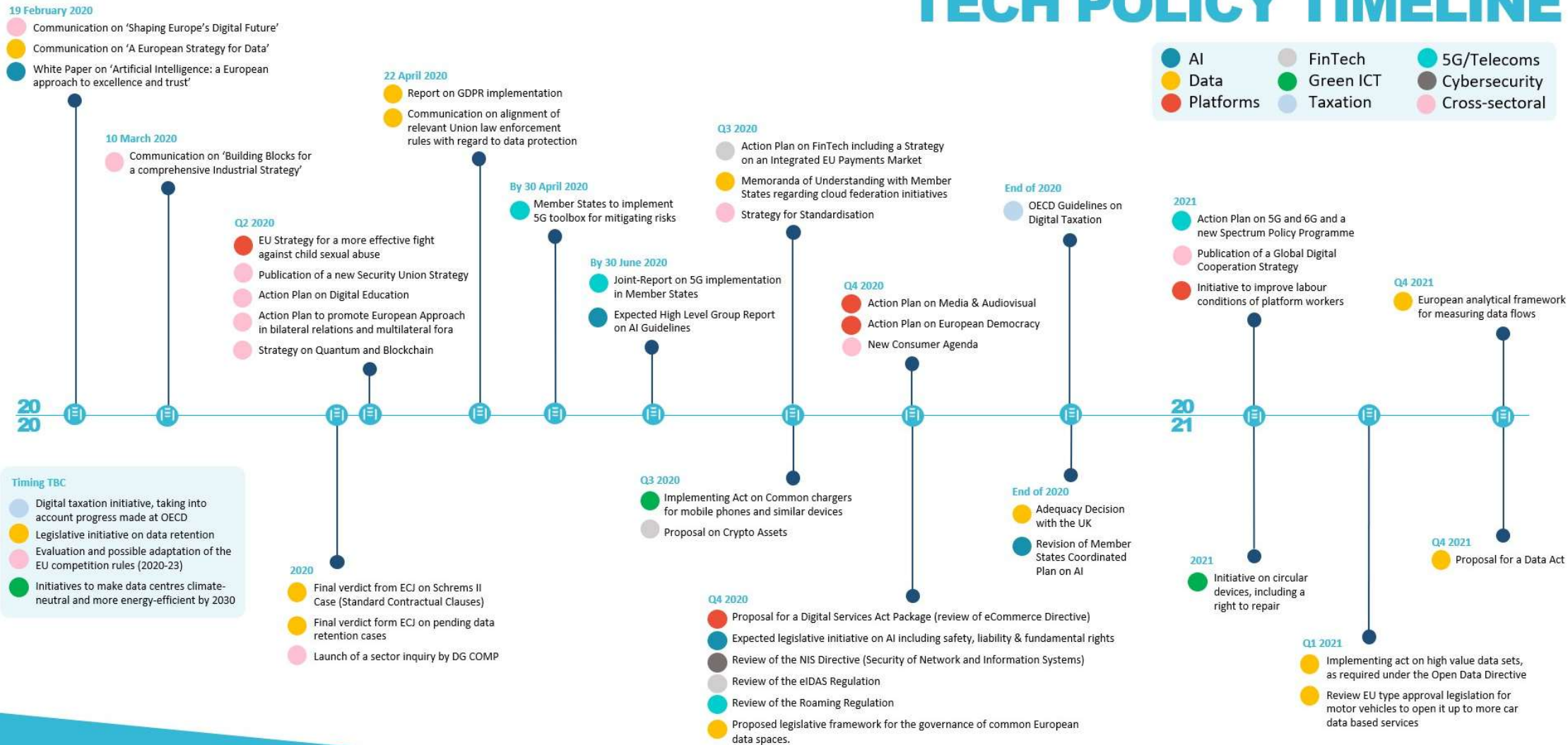


EIF IN PRACTICE



<https://eidas.ec.europa.eu/efda/browse/notification/eid-chapter-contacts>

TECH POLICY TIMELINE



FLEISHMANHILLARD

All dates are indicative –specific initiatives, sequencing and dates to be confirmed throughout 2020

E-GOVERNANCE RELATED EU LEGISLATION

- Digital Market Act
- Digital Services Act
- European Interoperability Framework Regulation (EIF)
- EU Cybersecurity Directive (NIS2)
- Cyber Resilience Act (CRA)
- General Data Protection Regulation (GDPR)
- Artificial Intelligence Act
- Single Digital Gateway Regulation (SDGR)
- The European Data Act
- Directive on Open Data and the Re-use of Public Information
- EU Digital Identity (eIDAS v2.)
- Directive on Attacks Against Information Systems
- EU Chips Act
- Digital Operational Resilience Act (DORA)
- Data Governance Act (DGA)





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SEMINAR ASSIGNMENT

*You represent the **European Commission**, which is about to introduce the initiative of self-driving cars in the EU.*

- We will form groups of 6 people and we use today Miro (link in the Moodle).
- 20 min discussion.
- 5 min presentation of the results.



The logo for TAL TECH, featuring the words "TAL" and "TECH" stacked vertically in a bold, white, sans-serif font. The background of the slide is a gradient of blue and purple, with a white rectangular area on the left side containing a purple L-shaped graphic element.

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PRESENTATION GUIDELINES

PRESENTATION TOPICS

- There are 14 EU legal acts in the list and each of them can be chosen by a maximum of three people.
- **Aim of the presentation:** to introduce the chosen legal act to other students (mutual learning process).
- Presentations on the 02.10 and 03.10 in Teams or on spot (if you present on spot, please upload the slides in Moodle by 15:00 pm on your presentation day).
- Presentation duration in total 20 minutes (15 min presentation + 5 min for Q/A).

PRESENTATION ELEMENTS

- Chosen legal act timeline;
- Aim of the legal act;
- The most relevant principles;
- Latest status of the legal act;
- Challenges related to the legal act;
- Upcoming activities related to the legal act;
- Related interesting cases/fact(s) (at least one!)
- Your own conclusions and the most important takeaways related to the chosen legal act;
- List of used literature in the final slide.

PRESENTATION GRADING

- Your presentation grade constitutes 40% of the total grade of the course.
- **In total, it is possible to receive 40 points for the presentation as follows:**
 - 15 points - all elements under the section "Presentation content" are covered during the presentation.
 - 5 points – presentation fits in the timeframe (15 minutes).
 - 5 points – your presentation is based on at least five authoritative sources (each source worth 1 point).
 - 5 points – overall impression and delivery of the presentation;
 - A maximum of 10 points will be earned from the peer-to-peer grading.



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QUESTIONS?

The TAL TECH logo is positioned in the upper right corner of the slide. It consists of the words 'TAL' and 'TECH' stacked vertically in a bold, white, sans-serif font. The background of the slide features a horizontal gradient from light blue to magenta, with a white rectangular area at the bottom. A magenta geometric shape is on the left side.

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THANK YOU VERY MUCH!

Silvia Lips
e-mail: silvia.lips@taltech.ee